



File No.: EXP202301175

## RESOLUTION OF

### PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

#### BACKGROUND

FIRST: A.A.A. (\*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on January 10, 2023. The complaint is directed against MANCOMUNIDAD B.B.B. with NIF \*\*\*NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

The complainant states that surveillance cameras have been installed in the common areas of the claimed Community despite the fact that no prior agreement of the owners has been reached, as established by the applicable regulations for such installations.

The complainant provides the Minutes of the Owners' Meeting dated October 20, 2022, in which it is acknowledged that no agreement was reached for the installation of the system, photographs of the installation of the cameras in common areas, and a letter sent by the complainant to the Administration of the Community.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on the initial date of 01/02/23, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

Consulting the information system of this Agency, it is recorded as (23/03/23) after reiteration of the sending on 13/02/23 without any response or clarification regarding the legality of the installed system.

THIRD: On April 10, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

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### REPORT OF PRELIMINARY INVESTIGATIVE ACTIONS

Date on which the claimed facts occurred: January 1, 2022

The background information recorded in the information systems is as follows:

On April 10, 2023, in procedure AT/004XX/2023, the Spanish Agency for Data Protection agreed to carry out the present investigative actions in relation to the previously described facts.

#### RESULT OF THE INVESTIGATIVE ACTIONS

On May 22, 2023, within the framework of the present investigative actions, ADMINISTRACIÓN C.C.C., representative of the respondent, was requested to provide the following information:

☐ Complete data of the MANCOMUNIDAD DE PROPIETARIOS B.B.B., including its NIF.

On July 7, 2023, compliance with the request was provided in the following terms:

(...) Regarding the request to indicate in the response the NIF of the respondent, for the purpose of incorporating the document into its file, we indicate: NIF of the respondent: \*\*\*NIF.1.

With the response to the information request, the following documents were provided:

- 1.- Responsible Declaration from the Property Administrator, D.D.D. NIF \*\*\*NIF.2, as the administrator of the Community of Owners B.B.B. with NIF \*\*\*NIF.1, stating that the cameras do not allow recording or viewing of images. (doc. 2).
- 2.- Report of disconnection of cameras with photographs of their disconnection. (doc. 3).
- 3.- Minutes of Extraordinary Meeting, dated June 6, 2023, where it is reported that the complaint from the AEPD has been received, stating that the cameras are disconnected, and the installation of cameras is approved by those present. (doc. 3).

FIFTH: On April 3, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the respondent for the alleged infringement of Article 6 GDPR, classified in Article 83.5 GDPR.

SIXTH: On May 6, 2023, a written statement of allegations was received regarding the facts subject to transfer, succinctly arguing the following:

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"This party, after reviewing the notification received, understands that there is a material error in the dates indicated by the AEPD for which the rectification of the same is requested (...)

This party is carrying out the necessary steps to legalize the surveillance of the community; therefore, signatures have been collected from all the owners of the same (...) a task that is quite laborious, to make a declaration of acceptance of the video surveillance cameras, having been approved by the majority established in the LPH (...) For all these reasons, it is intended to comply with the current legality. Document No. 1 includes the collected signatures (...)"

In view of all that has been acted upon, the following are considered proven facts by the Spanish Agency for Data Protection in the present procedure,

#### PROVEN FACTS

First. It is evidenced that a video surveillance system has been installed that affects common areas, processing an indeterminate number of data associated with an identified or identifiable natural person.

Second. It is evidenced that the main responsible entity is Mancomunidad B.B.B., with NIF \*\*\*NIF.1, who does not deny the installation of the system.

Third. It is evidenced that a video surveillance camera system has been installed, which does not have legal backing for this purpose at the time of the installation of the system.

The respondent itself confirms this aspect in a written statement dated 06/05/24 by asserting that it is "carrying out the necessary steps" to legalize the system.

#### LEGAL GROUNDS

I

##### Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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## II

Before addressing the substance of the matter, it is necessary to respond to the complaint of the respondent regarding the date of commission of the facts, which is determined in the complaint submitted on 10/01/23.

The fact that there was an "error" in the duplication of dates referring to 2024 does not cause defenselessness to the respondent, not only because they have the possibility of requesting a copy of the documentation contained in the administrative file; but also because they are aware of the date of installation of the video surveillance system.

The respondent has been aware of the facts subject to transfer, as well as the fact that the installed system did not have the necessary legal backing, as it had not been legally exposed to the entire group of owners of the community.

Likewise, the respondent has acknowledged taking the necessary measures to try to ensure that the system complies with current legality, an aspect that was specified in a later phase after the transfer of the facts by this agency.

Thus, it is appropriate to dismiss the claim of defenselessness or lack of specification of the date of the facts subject to accusation, as their right to defense is not affected.

## III

In the present case, the complaint dated 10/01/24 is examined, through which the following is conveyed:

"installation of video surveillance cameras directed towards community areas without having the required authorization" (folio No. 1).

The facts, therefore, are focused on determining whether there is the corresponding legal backing for the installation of the cameras at the time they were installed.

Article 17.3 LPH (Law 14/1960) states the following:

"The establishment or suppression of concierge, security, or other common services of general interest, whether or not they modify the constitutive title or the statutes, will require the favorable vote of three-fifths of the total number of owners who, in turn, represent three-fifths of the participation quotas." (\*the bold text belongs to this Agency).

Article 6 GDPR (Regulation EU 2016/679 of the European Parliament and of the Council of April 27, 2016):

"Processing shall be lawful only if at least one of the following conditions is met:

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e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller; (...).

The GDPR maintains the principle that all data processing must be based on a legitimate foundation. It must be supported by one of the enabling bases established in a closed list in Article 6.1 GDPR.

Therefore, the corresponding item on the Agenda must include the presentation, if applicable, of the installation of the mentioned "system," explaining its purpose, affected areas, corresponding information, and it must expressly state the approval for its installation with the appropriate majorities and legal requirements.

## III

In accordance with the evidence available in this warning procedure, it is considered that the party being complained against, as stated by the complainant, "has a video surveillance camera system without the proper authorization from the homeowners' association."

The known facts constitute an infringement attributable to the party being complained against under Article 6 GDPR, as reflected above, due to the lack of a legitimizing basis at the time the stated facts occurred.

Article 83.5 GDPR provides: "Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9 (...).

Article 72, paragraph 1 of the LOPDGDD (LO 3/2018, December 5) regarding the statute of limitations for very serious infringements "shall expire after three years" and in particular the following:

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

III

Proposal for warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 "Powers" the following:

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"Each supervisory authority shall have all of the following corrective powers:

(...)

b) to issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)"

Furthermore, Article 64 of the LOPDGDD, which regulates the "Initiation of the procedure and duration," states in its third paragraph that:

"3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Data Protection Agency, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at putting an end to the possible non-compliance with data protection legislation in a specific manner and within the specified timeframe.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it shall expire, and consequently, the file shall be archived.

The provisions of the second and third paragraphs of paragraph 2 of this article shall apply in this case."

IV

Adoption of measures

The text of the resolution establishes what the infringements committed were and the facts that led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them correspond to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

The party being complained against, as evidenced in a document dated 06/05/24, has proceeded to adopt measures to gather the necessary signatures to provide legal backing for the installed system, so no additional measures can be imposed.

For the purpose of completing the content of this resolution, it is reminded that the cameras must be necessary to fulfill the intended purpose, and they must be properly informed through informative sign(s) in a visible area, specifying the responsible party for access to the images, as well as complying with all other legally required requirements, which can be consulted on the website of this agency [www.aepd.es](http://www.aepd.es) Guide Video Surveillance.

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to the entity MANCOMUNIDAD B.B.B., with NIF \*\*\*NIF.1, for a violation of Article 6 of the GDPR, classified under Article 83.5 of the GDPR, without the imposition of measures.

SECOND: TO NOTIFY this resolution to the entity MANCOMUNIDAD B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6  
www.aepd.es  
28001 – Madrid  
sedeagpd.gob.es